

TAB 26



Board of Education Report

File #: Res-044-25/26, Version: 2

Agenda Date: 3/10/2026

In Control: Board of Education

Dr. Rivas, Mr. Schmerelson, Ms. Gonez - Leveraging District Purchasing Power to Defend Immigrant Families and Human Dignity (Res-044-25/26) (Noticed February 17, 2026) (Version 2)

Whereas, The Los Angeles Unified School District (District) serves a diverse student population, including immigrant, newcomer, and mixed-status families, and is committed to ensuring that every student experiences safe, inclusive, and supportive learning environments;

Whereas, Public education is foundational to a healthy democracy, and student learning, civic participation, and family engagement are compromised when fear, instability, racial profiling, or diminished trust discourage students and families from fully accessing public institutions;

Whereas, The immigration enforcement policies and practices implemented by federal agencies have had direct and indirect effects on immigrant communities nationwide, including increased fear, instability, and disengagement from public life, which can adversely affect school attendance, family engagement, and student well-being;

Whereas, Practices that rely on or contribute to racial profiling disproportionately harm Black, brown, Indigenous, immigrant, and marginalized communities, erode democratic trust, and can negatively affect student attendance, engagement, mental health, and overall well-being;

Whereas, In this area, the District acts to uphold civil rights and to meet its responsibilities under the Constitution, applicable federal, state, and local law, and District policy, including the LAUSD Strategic Plan 2022-2026, A Pathway to Student Success and its commitments to student joy and wellness, and prior Board action designating the District as a Sanctuary District and adopting the We Are One initiative, in order to protect access to education, student well-being, and trust in public schools;

Whereas, The District exercises discretion over public funds through procurement and contracting, consistent with applicable state law and District policy, and has a responsibility to steward those resources in a manner that supports student safety, family unity, civil rights, and public trust;

Whereas, Certain vendors and contractors may, through their external business practices or partnerships, support detention, surveillance, civil immigration enforcement, or data-driven practices conducted by U.S. Immigration and Customs Enforcement (ICE), U.S. Customs and Border Protection (CBP), the U.S. Department of Homeland Security (DHS), or other federal agencies or contractors engaged in immigration enforcement or detention functions, where such practices have been credibly reported or otherwise documented to involve racial profiling, disregard of judicial orders, or other conduct raising serious concerns regarding civil rights and civil liberties;

Whereas, Such support may include, but is not limited to, the provision of data analytics, information systems, cloud-based services, surveillance technologies, financial contributions, donations,

sponsorships, or other technical or commercial assistance that enables or aligns a vendor with civil immigration enforcement or detention operations, including where such support is provided indirectly or as part of broader commercial offerings; and

Whereas, The District seeks to ensure that its economic relationships are aligned with its educational mission and values and do not support or enable activities that undermine student safety, family unity, democratic participation, or human dignity; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District affirms that the District shall use its purchasing power consistent with its educational mission to promote student safety, uphold family unity, support inclusive learning environments, and protect democratic participation and freedom from racial profiling;

Resolved further, That the Board directs the Superintendent or designee, to the extent permitted by law, to require as part of District procurement and contract administration, that vendors responding to District solicitations and vendors with existing District contracts provide disclosures regarding external contracts, financial contributions, donations, sponsorships, partnerships, or other business activities related to civil immigration enforcement, detention, or related surveillance practices that may implicate the purposes of this Resolution, and to consider such disclosures in connection with contract administration, amendments, extensions, or renewals;

Resolved further, That the Board directs the Superintendent or designee to establish a review framework to assess whether vendors' activities or external partnerships support **are directly engaged in, or provide material services, enabling** ~~or are connected to~~ practices that are fundamentally incompatible with the purposes of this Resolution, including detention, surveillance, enforcement, or profiling practices conducted by U.S. Immigration and Customs Enforcement (ICE) or other federal agencies or contractors **specifically** engaged in civil immigration enforcement or detention functions, where such practices, **based on credible information or documented reports**, raise credible concerns regarding human dignity, civil rights, or student and family trust. In conducting this review, and for commodity goods or widely available products, the framework shall prioritize disclosure, mitigation, and the identification of reasonable alternatives, where feasible and cost-effective, **consistent with applicable procurement law**;

Resolved further, That based on the assessment conducted through the review framework established by this Resolution, the Superintendent or designee **may** ~~shall~~ recommend appropriate **contract management** actions, including **amendment, mitigation measures, non-engagement, non-renewal where permitted, or the exercise of contractual rights available under existing agreements, including divestment, or termination for convenience cause where authorized by contract** ~~applicable~~, to the extent permitted by law;

Resolved further, That, when supported by credible information, and consistent with existing contractual terms and applicable law, the Superintendent or designee shall review vendor conduct and **refer such findings for consideration within the review framework established by this Resolution**; ~~recommend appropriate actions, including non-engagement, non-renewal, divestment, or termination for cause where applicable~~;

Resolved further, That the Superintendent or designee shall, to the extent permitted by law, refrain from

entering into new agreements for District-sponsored events, meetings, or activities at venues owned, operated, or controlled by entities whose activities or external partnerships **directly** support or **provide material services enabling** ~~are connected to~~ civil immigration enforcement or detention practices that are fundamentally incompatible with the purposes of this Resolution, **based on credible and reasonably verifiable information**, where such practices raise credible concerns regarding human dignity, civil rights, or student and family trust;

Resolved further, That the Board directs the Superintendent or designee to provide, **a framework to review vendors** within ~~sixty (60)~~ **180** days of adoption of ~~the~~ **this** Resolution, **and** a public **status** report **of its development** ~~summarizing the review framework, the scope of vendors assessed, and any recommendations, to the extent permitted by law;~~ **to be agendized for public discussion at a Committee of the Whole meeting during the second quarter of 2026;**

Resolved further, That the Board directs the Superintendent or designee to compile a complete list of all contracts the District has with outside vendors, third parties, memorandums of understanding etc. along with relevant details including but not limited to ratification date, start date, end date, cost, a short summary of services provided and other essential details for the Board and distribute to all Board Offices within 180 days of adoption of the Resolution;

Resolved further, That the Board directs the Superintendent or designee to begin development for a public facing database on all District contracts with outside vendors, third parties, memorandums of understanding, etc. along with relevant details including but not limited to ratification date, start date, end date, cost, a short summary of services provided and other essential details to be available through the District website and accessible to the greatest extent possible by November 2026;

Resolved further, That the report shall be agendized for public discussion at a Committee of the Whole meeting during the second quarter of 2026; and, be it finally

Resolved, That the Superintendent or designee shall implement this Resolution in a manner consistent with Governing Board policy, collective bargaining agreements, and applicable law. **Nothing in this Resolution shall be interpreted to require actions inconsistent with applicable procurement statutes, competitive bidding requirements, federal funding conditions, or existing contractual obligations. Implementation shall include** ~~including~~ the prospective application of procurement standards and the lawful disclosure, review, and administration of existing and future contracts, and shall do so in coordination with labor partners and relevant community stakeholders.